

Form No:HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No. W.P No.23999/2024

Blitz Advertising (Pvt.) Ltd. Vs Civil Judge Lahore & another

S.No.of order/ Proceeding	Date of order/ Proceeding	Order with signature of judge, and that of parties or counsel, where necessary.
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11.02.2025 M/s Muhammad Ahmad Qayyum and Shamail Arif,
Advocates for the petitioner.
Mr. Zaki Rehman, Advocate for respondent No.2.

This constitutional petition challenges the impugned order dated 26.03.2024 passed by learned Civil Judge, (Special Court Admin for Commercial Cases), Lahore. By the said order an application filed by the petitioner was dismissed which had sought dismissal of the application filed by respondent No.2 under Section 14 and 17 of the Arbitration Act, 1940. It was contended in the application that the civil court lacked jurisdiction to make the award rule of court as it was caught by the provisions of the Recognition and Enforcement (Arbitral Agreement & Foreign Arbitral Award) Act, 2011.

2. This order will also decide connected petition viz. W.P No.23998 of 2024 in which a similar order was passed between the same parties.

3. The facts are undisputed. An arbitration took place between the petitioner and respondent No.2 by an Arbitration Tribunal set up through a letter dated 06.08.2020. The award was announced on 16.12.2021by sole arbitrator appointed by the parties. It is contended by the learned counsel for the petitioner that the arbitration was to be conducted under the London Chamber of International Arbitration Rules namely LCIA Arbitration Rules, 2014.

Doubtless, the sole arbitrator was appointed by LCIA through an email dated 06.08.2020. Apart from that it was clearly mentioned in that email that the seat of arbitration shall be Lahore, Pakistan, the language of arbitration proceedings shall be English and the law of arbitration and the arbitration agreement shall be Pakistan Law. Further, there is no contention that the award so rendered was at Lahore which fact is mentioned on the first page of the copy of award which has been attached with this petition. To reiterate, the learned counsel for the petitioner has submitted that this was a foreign arbitral award within the meaning of the Act, 2011.

4. The term ‘foreign arbitral award’ has been defined in the Act as follows:

“foreign arbitral award” means a foreign arbitral award made in a Contracting State and such other State as may be notified by the Federal Government, in the official Gazette.”

5. The above definition clearly connotes that a foreign arbitral award shall mean a foreign arbitral award made in a Contracting State and such other State notified by the Federal Government in the official gazette. As adumbrated, the arbitral award was made at Lahore and so cannot be considered as a foreign arbitral award made in a contracting state. Otherwise, the term ‘foreign arbitral award’ would clearly mean taken literally that the arbitral award has been made in a foreign country though that country is a contracting state. It does not matter whether the Rules 2014 were applicable and in terms of which the sole arbitrator was appointed. What is of crucial significance is the fact that the

award should be made in a contracting state which would mean a state which is signatory to a New York Convention. Since the award has been made at Lahore and the entire proceedings were also conducted at Lahore, there is no warrant for this Court to hold that the award in question is a foreign arbitral award which can only be enforced under the provisions of the Act, 2011. Additionally both the parties are Pakistani entities and there is no warrant to hold that they intended the ensuing Award to be treated as foreign Arbitral Award within the meaning of the Act, 2011. This is also clear from the holding of this Court in *C.O No.25854 of 2023 SpaceCom International, LLC v. Wateen Telecom Limited* where the proposition has been dealt with extensively. Moreover, the Supreme Court of Pakistan has also elaborated this view in Civil App. No.722 of 2012 in a judgment rendered on 22.02.2024. The learned counsel for the petitioner has relied upon a judgment by a learned Single Judge of this Court reported as *M/s Tradhol International SA Sociedad Unipersonal v. Messrs Shakarganj Limited (PLD 2023 Lahore 621)* but that judgment has no application to the facts of the instant case.

6. In view of the above, there is no illegality in the impugned orders and this petition is **dismissed**.

(SHAHID KARIM)
JUDGE

Approved for reporting.

JUDGE

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Rafaqat Ali